

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesselstine**

Hearing Date and Time: September 10, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name Case Number	Tentative
1.	<i>In re: 5353 Barrett Circle, Buena Park, California 90621 2026-01557436</i>	On July 16, 2026, the court heard the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale filed by petitioner Western Progressive, LLC (Petitioner). Petitioner filed the petition under Civil Code section 2924j following a trustee's sale pursuant to a deed of trust that Petitioner conducted on or about June 24, 2024, regarding the property located at 5353 Barrett Circle, Buena Park, California 90621 (Property). After paying the amount due on the foreclosed trust deed, the trustee's fees and expenses, and the filing fee for this case, Petitioner sought to deposit the surplus funds of \$396,426.41 with the court and be discharged from responsibility for the distribution of those funds because, after due diligence, Petitioner was unable to determine the priority of the written claims it received. On July 16, 2026, the court granted the petition and ordered Petitioner to deposit the surplus funds with the court. On July 27, 2026, Petitioner filed a Notice of Completion of Deposit and Discharge (ROA 23) attaching a receipt showing it had deposited the surplus funds with the court, and therefore Petitioner has now been discharged from the responsibility to distribute those funds.

		In granting the petition, the court scheduled today's hearing to resolve any and all claims to the surplus funds and ordered any person with a claim to some or all of the funds to file a claim at least 15 days before the hearing. On or about July 22, 2026, Petitioner gave notice via U.S. Mail of today's hearing to all parties identified in the petition as potentially having a claim to some or all of the surplus funds. (ROA 19.) The court clerk also sent notice to all parties identified in the petition. (ROA 17.) As of August 26, 2026, the court has not received any claim to the surplus funds. Accordingly, the surplus funds shall stay on deposit with the clerk until such time as a claim to the funds is duly asserted, or until the funds escheat to the court. (Gov. Code, § 68084.1(a) ["Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court if, after published notice pursuant to this section, the money is not claimed or no verified complaint is filed and served"]; Code Civ. Proc. § 1502(a)(3) ["This chapter does not apply to any of the following: [¶] . . . [¶] (3) Any property in the official custody of a court if the property may be transferred to the Trial Court Operations Fund under Section 68084.1 of the Government Code"] Code Civ. Proc., § 1519 ["All tangible personal property located in this state, and, subject to Section 1510, all intangible personal property, held for the owner by any government or governmental subdivision or agency, that has remained unclaimed by the owner for more than three years escheats to this state"].) Having received no claims to the surplus funds, the court hereby sets an order to show cause hearing as to why the surplus funds on deposit with the court should not escheat to the court. The order to show cause hearing is scheduled for Monday, September 17, 2029, at 9:30 a.m., in Department C23. The clerk is directed to serve notice of this ruling on all parties upon whom the clerk served notice of the Court's July 16, 2026 ruling.
2.	<i>In re: 30 Galeana, Foothill Ranch, California 92610</i>	Before the court is the hearing to consider the claims to the undistributed surplus proceeds of trustee's sale regarding the sale of the property located at 30 Galeana, Foothill Ranch, California 92610 (Property). As more fully set forth below, the hearing on the claims is CONTINUED TO

	2026-01550091	THURSDAY, DECEMBER 3, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for petitioner California TD Specialists (Petitioner) to deposit the funds at issue with the court. On February 19, 2026, Petitioner filed a petition under Civil Code section 2924j regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale for the Property. After paying off the trust deed for the Property and Petitioner's fees and expenses, Petitioner sought to deposit the surplus funds of \$143,391.14 with the court and be discharged from responsibility for the distribution of those funds because, after due diligence, Petitioner was unable to determine the priority of the written claims received to the surplus proceeds. On July 10, 2026, the court granted Petitioner's petition and ordered Petitioner to deposit all surplus funds relating to the trustee's sale for the Property with the clerk of the court forthwith. There is no indication in the court's files that Petitioner deposited the surplus funds as ordered. The court thus cannot grant any of the claims received at this time. (See Civ. Code § 2924j(d) ["Within 90 days after deposit with the clerk, the court shall consider all claims filed at least 15 days before the date on which the hearing is scheduled..."].) Indeed, the court does not currently have the funds to be distributed. The court will therefore CONTINUE the hearing as set forth above and orders Petitioner to deposit all surplus funds relating to the trustee's sale for the Property with the clerk of the court forthwith. <u>TO BE CLEAR, PETITIONER IS NOT DISCHARGED FROM ITS OBLIGATIONS UNTIL THE FUNDS ARE DEPOSITED WITH THE COURT AND THEREFORE NO DISCHARGE HAS OCCURRED. REGARDLESS OF ANY DEPOSIT, PETITIONER'S COUNSEL IS ORDERED TO APPEAR AT THE CONTINUED HEARING TO ENSURE ALL FUNDS HAVE BEEN DEPOSITED. ANY FAILURE TO COMPLY WITH THE COURT'S ORDERS MAY RESULT IN SANCTIONS.</u> The clerk of the court is directed to give notice of the foregoing hearing by first class mail to Petitioner and all claimants identified in attachment 8 to the petition and to all parties who have filed any claim or other document in this action.
3.	<i>Ferree vs. Ford Motor Company</i> 2026-01578587	Before the court is a petition by Jorge Ferree (Petitioner) to appoint an arbitrator and compel arbitration of his claim for pre-litigation attorney fees against respondent Ford Motor Company (Ford). For the reasons set forth herein, the hearing on the petition is CONTINUED TO THURSDAY,

OCTOBER 15, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for the parties to nominate potential arbitrators.

The parties agree binding arbitration is the proper procedure for determining the issue of attorney fees pursuant to Code of Civil Procedure section 871.24, subdivision (f), as well as paragraph 1(c)(i) of the Standardized SBA Release attached to the Petition as Exhibit 1. The parties, however, have been unable to agree on selection of an arbitrator, and therefore Petitioner seeks an order appointing an arbitrator pursuant to Code of Civil Procedure section 1281.6.

Section 1281.6 states, "When a petition is made to the court to appoint a neutral arbitrator, the court shall nominate five persons from lists of persons supplied jointly by the parties to the arbitration or obtained from a governmental agency concerned with arbitration or private disinterested association concerned with arbitration. The parties to the agreement who seek arbitration and against whom arbitration is sought may within five days of receipt of notice of the nominees from the court jointly select the arbitrator whether or not the arbitrator is among the nominees. If the parties fail to select an arbitrator within the five-day period, the court shall appoint the arbitrator from the nominees.

Here, neither party has submitted the names of any person to act as arbitrator. Although Ford has submitted names of four arbitration companies, Section 1281.6 specifically refers to nomination of "persons" and not "companies." The court orders Petitioner and Ford each to file a notice of nomination of arbitrators in which they each nominate five specific individuals to serve as arbitrator. A CV or other biographical information should be attached for each nominee demonstrating their experience and qualifications to serve as an arbitrator in a matter seeking prelawsuit attorney fees under the Song-Beverly Act. Petitioner and Ford are ordered to file and serve the notice of nominees on or before October 1, 2026. Upon receipt of the lists, counsel for Petitioner and Ford are ordered to meet and confer regarding the nominees in an effort to agree upon one. If the parties are unable to agree, the court will narrow it down to a list of five and proceed as specified in section 1281.6.

Accordingly, the hearing on the petition is **CONTINUED** as set forth above.

Petitioner's counsel is ordered to give notice of this ruling.

4.	<i>Stradling, Yocca, Carlson & Rauth LLP vs. Avenir Wellness Solutions, Inc.</i> 2026-01572452	Before the court is the petition to confirm attorney-client fee arbitration award filed by petitioner Stradling, Yocca, Carlson and Rauth, LLP (Petitioner). As more fully set forth below, the hearing on this petition is CONTINUED TO THURSDAY, DECEMBER 3, 2026, AT 2:00 P.M. IN DEPARTMENT C23, for an amended petition to be filed and proper proof of service. By this petition, Petitioner seeks to confirm the arbitration award against respondent Avenir Wellness Solutions, Inc., fka Cure Pharmaceutical Holding Corp. (Respondent) that Hon. Kirk H. Nakamura (Ret.) issued from the parties' arbitration held on December 22, 2025. The award is dated April 14, 2026. Although the arbitration involved an attorney-client fee dispute arising from Petitioner's representation of Respondent in earlier litigation and Respondent's failure to pay Petitioner the agreed upon fees, the arbitration was conducted as a contractual arbitration not a mandatory fee arbitration under the Mandatory Fee Arbitration Act (Bus. & Prof. Code, § 6200, et seq.). In filing the petition, Petitioner used the Judicial Council Form Petition that is used to confirm arbitration awards that become binding pursuant to the terms of the Mandatory Fee Arbitration Act. Indeed, section 8 of the form requires the petition to check the box stating the grounds on which the award became binding—i.e., by subsequent agreement of the parties or because no party requested a trial de novo within 30 days. Moreover, arbitrations under Mandatory Fee Arbitration Act generally are conducted through a local bar association or the State Bar; they are not conducted through private arbitration providers like JAMS, which was the arbitration provider in this case. The arbitration award Judge Nakamura issued makes clear the arbitration was conducted pursuant to an agreement to arbitrate, not the Mandatory Fee Arbitration Act. At pages 1-2 of the award, under the heading "Jurisdiction," Judge Nakamura explains the arbitration was conducted pursuant to an agreement to arbitrate contained in the Engagement Letter. Code of Civil Procedure section 1285.4 sets forth the essential terms of a petition to confirm a contractual arbitration award as follows: "A petition under this chapter shall: [¶] (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. [¶] (b) Set forth the names of the arbitrators. [¶] (c) Set forth or have
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		attached a copy of the award and the written opinion of the arbitrators, if any.” Although Petitioner’s petition identifies the arbitrator and attaches a copy of his award, it does not set forth the substance or attach a copy of the agreement to arbitrate that Judge Nakamura identified as the basis for the arbitration award. Accordingly, the hearing is CONTINUED as stated above and Petitioner is ordered to forthwith file an amended petition, using Judicial Council Form ADR-106, entitled Petition Confirm Contractual Arbitration Award, and provide all information required to confirm a contractual arbitration award (as opposed to a fee arbitration award). Moreover, any petition to confirm an arbitration award and the notice of hearing on such petition must be served at least 10 days before the hearing. (Code Civ. Proc. § 1290.2.) Proof of such service must be filed with the court at least five court days before the hearing. (Cal. Rules Ct., rule 3.1300(c).) Code of Civil Procedure section 1290.4 states, “(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice. [¶] (b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: (1) Service within this State shall be made in the manner provided by law for the service of summons in an action. . . . Here, both the petition and notice of this hearing were served by U.S. Mail. This is not sufficient service. (See Code Civ. Proc. §415.10, et. seq.) Accordingly, the hearing on the petition also is CONTINUED as stated above, and Petitioner is ordered to file a proof of service showing Respondent was timely served with a copy of the petition, the amended petition, and notice of hearing. The proof of service shall be filed at least 10 days prior to the new hearing. Counsel for Petitioner is ordered to give notice of this ruling.
5.	<i>UniFirst Corporation vs.</i>	Before the court is the continued hearing on the petition of petitioner Unifirst Corporation (Petitioner) to confirm contractual arbitration award in the amount of \$67,026.10

	ICC Collision Center 2026-01560581	entered on September 18, 2025, against respondent ICC Collision Center dba Autobahn Collision Center, Inc. For the reasons set forth below, the petition is DENIED WITHOUT PREJUDICE. This petition originally came on for hearing on July 16, 2026. Prior to that hearing, the court posted a tentative ruling to continue the hearing to today's date because there was no proof of service showing service on any notice of hearing. There were no appearances and the tentative became the final ruling. Specifically, the July 16th Minute Order stated: "Before the court is the petition by Unifirst Corporation (Petitioner) to confirm contractual arbitration award in the amount of \$67,026.10 entered on September 18, 2025, against respondent ICC Collision Center dba Autobahn Collision Center, Inc. (Respondent). As more fully set forth below, the petition is CONTINUED TO SEPTEMBER 10, 2026, AT 2:00 P.M. IN DEPARTMENT C23, for service of proper notice of hearing. "The petition to confirm an arbitration award and the notice of hearing on such petition must be served at least 10 days before the hearing. (Code Civ. Proc., §§ 1290.2, 1290.4.) Proof of such service must be filed with the court at least five court days before the hearing. (Cal. Rules Ct., rule 3.1300(c).) "Here, Petitioner failed to timely file any proof of service showing proper service of notice of hearing on Respondent. The proof of service Petitioner filed shows Respondent was served with the summons, civil case coversheet, and petition to confirm contractual arbitration award. Petitioner has not filed any notice of this hearing or proof of service showing Respondent was served with notice of the hearing. The court served notice on Petitioner, but it cannot serve Respondent because Respondent has not yet appeared and therefore has no address of record. "Based on the foregoing, the Court will CONTINUE the hearing as set forth above for Petitioner to provide proper notice of hearing to Respondent. The proof of service must be filed at least five court days before the hearing." Petitioner has not filed a notice of continued hearing, a new proof of service, or any other documents since the last
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		hearing. As such, there remains nothing showing Respondent was given notice of any hearing on the petition. Based on Petitioner's failure to give proper notice of hearing despite the court providing an additional opportunity, the petition is DENIED WITHOUT PREJUDICE. Petitioner's counsel is ordered to give notice of this ruling.
6.	<i>Asvadi vs. Clear Vision Financial LLC</i> <i>2026-01581101</i>	Before the court is the "Joint Petition for Order 1) Confirming Termination of Arbitration Proceedings, 2) Statutory Sanctions, Attorneys' Fees, and Costs Pursuant to C.C.P. §§ 1287.98 & 1281.99; and 3) Order Maintaining Joinder and Denying Severance" filed by petitioners Amin Asvadi, Ramiro Castillo, Joseph Chavez, Abdon Garay, Aracely Gonzalez, Uriah Molle, John Park, Manuel Sepulveda, and Erik Venters (collectively, Petitioners) against respondent Clear Vision Financial, LLC, d/b/a Liberty1 Financial (Respondent). As more fully set forth below, the petition is GRANTED IN PART, CONTINUED IN PART, and DENIED IN PART. The petition is GRANTED as to the request to withdraw from arbitration and permit Petitioners to pursue their claims against Respondent in court despite the existence of their arbitration agreements. The petition is GRANTED as to the requests for attorney fees, costs, expenses, and monetary sanctions under sections 1281.98, subdivision (c), and 1281.99, subdivision (a), and CONTINUED TO THURSDAY, DECEMBER 3, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for further briefing as to the amount of attorney fees, costs, expenses, and monetary sanctions. The petition is DENIED as to the request for evidentiary and terminating sanctions under section 1281.99, subdivision (b). Finally, the petition is DENIED WITHOUT PREJUDICE as to the request for an order maintaining joinder and denying severance. <u><i>Withdrawal From Arbitration:</i></u> Code of Civil Procedure section 1281.98, subdivision (a)(1), declares an employer is in material breach of an arbitration agreement, is in default of arbitration and waives its right to compel an employee to proceed with arbitration if the employer fails to timely pay the fees necessary to proceed with the arbitration. Specifically, that subdivision states, "In an employment or consumer arbitration that requires, either expressly or through application of state or federal law or the rules of the arbitration provider, that the drafting party pay certain fees and costs during the pendency of an arbitration proceeding, if the fees or costs required to continue the arbitration proceeding are not paid within 30 days after the

		due date, the drafting party is in material breach of the arbitration agreement, is in default of the arbitration, and waives its right to compel the employee or consumer to proceed with that arbitration as a result of the material breach.” Section 1281.98, subdivision (b), grants the employee the ability to unilaterally choose from a variety of options if an employer is in material breach of an arbitration agreement under section 1281.98, subdivision (a)(1). As relevant here, those options include “Withdraw the claim from arbitration and proceed in a court of appropriate jurisdiction.” (Code Civ. Proc., § 1281.98, subd. (b)(1).) Here, it is undisputed each Petitioner initiated their arbitration against Respondent with JAMS, and Respondent initially paid the arbitration fees necessary to open and proceed with the arbitrations (with the exception of petitioner Aracely Gonzalez for whom Respondent never paid any arbitration fees). The parties selected arbitrators and proceeded with the arbitrations, including discovery. However, shortly after JAMS invoiced Respondents for the arbitration fees required to proceed with the evidentiary hearings in each Petitioners’ arbitration, and shortly after Petitioners filed discovery motions against Respondent, Respondents sent letters to Petitioners’ counsel and JAMS announcing it was withdrawing from all arbitrations and would not be paying the fees necessary to proceed any further with the arbitrations, or any other arbitration fees. Respondent asserted the JAMS invoices were grossly inflated in relation to what Respondent perceives to be the minimal value of Petitioners’ claims—equating them to small claims matters. Respondent asserted Petitioner’s counsel was trying to leverage a settlement based on the high cost of proceeding with the arbitrations. Significantly, Respondent’s withdrawal letters accused both JAMS and Petitioners’ counsel of misconduct, but they did not assert an inability to pay the arbitration fees. It is clear the time for Respondent to pay the arbitration fees necessary to proceed as long ago expired, and Respondent has refused to pay those fees. As such, Respondent is in material breach of the arbitration agreements, is in default of the arbitrations, and waived its right to compel Petitioners to proceed with the arbitrations. Indeed, Respondent concedes it will not proceed any further with the arbitrations and encouraged Petitioners to proceed with their claims in court.
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		As a result, Petitioners are entitled to withdraw from the arbitrations and file their claims in court. Their request to do so is GRANTED, and Petitioners may proceed to file their complaint asserting their various claims against Respondent. As more fully discussed below, the request for an order maintaining joinder and denying severance is DENIED WITHOUT PREJUDICE. Petitioners have not cited any authority establishing that as an authorized sanctions under either section 1281.98 or 1281.99. Whether to allow Petitioners to join all their claims together in a single action is an issue for the court to decide in the case to be commenced by Petitioners against Respondent. <u><i>Attorney Fees, Costs, Expenses, and Sanctions:</i></u> There are two separate statutory provisions authorizing some form of expense recovery and sanctions against Respondent based on its refusal to pay the arbitration fees. Section 1281.98, subdivision (c), provides, "If the employee . . . withdraws the claim from arbitration and proceeds in a court of appropriate jurisdiction pursuant to paragraph (1) of subdivision (b), both of the following apply: [¶] (1) The employee . . . may bring a motion, or a separate action, to recover all attorney's fees and all costs associated with the abandoned arbitration proceeding. The recovery of arbitration fees, interest, and related attorney's fees shall be without regard to any findings on the merits in the underlying action or arbitration. [¶] (2) The court shall impose sanctions on the drafting party in accordance with Section 1281.99." Section 1281.99 provides, "(a) The court shall impose a monetary sanction against a drafting party that materially breaches an arbitration agreement pursuant . . . subdivision (a) of Section 1281.98, by ordering the drafting party to pay the reasonable expenses, including attorney's fees and costs, incurred by the employee . . . as a result of the material breach. [¶] (b) In addition to the monetary sanction described in subdivision (a), the court may order any of the following sanctions against a drafting party that materially breaches an arbitration agreement pursuant to . . . subdivision (a) of Section 1281.98, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. [¶] (1) An evidence sanction by an order prohibiting the drafting party from conducting discovery in the civil action. [¶] (2) A terminating sanction by one of the following orders: [¶]
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		(A) An order striking out the pleadings or parts of the pleadings of the drafting party. [¶] (B) An order rendering a judgment by default against the drafting party. [¶] (3) A contempt sanction by an order treating the drafting party as in contempt of court.” Initially, Respondent contends Petitioners request for attorney fees under section 1281.98, subdivision (c)(1), is premature because the language of that subdivision requires Petitioners to bring a motion or separate action apart from their request to terminate the arbitration proceedings. The court disagrees. As quoted above, that subdivision provides an employee “may bring a motion, or a separate action, to recover all attorney’s fees and all costs associated with the abandoned arbitration proceeding.” Nothing in this statutory language requires Petitioners to bring a motion or action separate and apart from its efforts to file a court case to pursue their claims in order to recover these attorney fees. Indeed, there is nothing in any of the statutory provisions that required Petitioner to obtain any sort of court order or leave allowing them to proceed in court. Petitioners could have simply filed their complaint in court and then asserted the provisions of section 1281.98 in response to any efforts by Respondent to assert Petitioners must pursue their claims in arbitration or their claims are time barred. In that action, Petitioner could then have sought attorney fees under section 1281.98, subdivision (c)(1). Moreover, Petitioner have filed a separate action to recover their attorney fees and costs under section 1281.98, subdivision (c)(1). The court therefore rejects Respondent’s prematurity argument. In <i>Hohenshelt v. Superior Court</i> (2025) 18 Cal.5th 310, the Supreme Court interpreted section 1281.98 as permitted the employer to obtain relief from its waiver of the right to compel arbitration based on existing law and in order to prevent the statute from being preempted by the Federal Arbitration Act. Specifically, the <i>Hohenshelt</i> court held an employer could obtain relief from section 1281.98’s waiver if the employer could meet the requirements of Civil Code section 3275, Civil Code section 1511, or Code of Civil Procedure section 473, subdivision (b). Significantly, however, the <i>Hohenshelt</i> court did not hold the employer could avoid the attorney fees and sanctions provided by section 1281.98, subdivision (c)(1), or section 1281.99. <i>Hohenshelt</i> did not specifically address attorney fees under section 1281.98, subdivision (c)(1), but it did discuss
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	sanctions under section 1281.99. Specifically, the court noted the monetary sanctions under section 1281.99, subdivision (a), are mandatory while the other sanctions under section 1281.99, subdivision (b), are discretionary. Indeed, the court explained, “section 1281.99’s mandatory sanction provision . . . requires the drafting party to pay any reasonable expenses incurred by the employee or consumer as a result of its failure to timely pay arbitration fees (§ 1281.99, subd. (a)) — in essence, to make the other party whole (Civ. Code, § 3275) — whether the nonpayment was willful or not.” (<i>Hohenshelt, supra</i>, 18 Cal.5th at pp. 339-340; see <i>Wilson v. TAP Worldwide, LLC</i> (2025) 114 Cal.App.5th 1077, 1088.) Here, Respondent is not seeking relief from its waiver of the right to compel Petitioners to arbitrate their claims. Rather, Respondent has affirmed its waiver and made clear its desire to litigate Petitioners’ claims in court. Respondent nonetheless asserts its failure to pay the arbitration fees was not strategic or done in bad faith, but rather was a result of its inability to pay the fees. Given the legislative purpose behind section 1281.98, Respondent appears to assert this alleged distinction somehow relieves it of its obligation to pay the fees and the consequences of that failure, but fails to cite any authority to support that position or overcome the mandatory nature of the sanctions. Setting aside the fact Respondent did not assert its inability to pay the arbitration fees when it refused to do so and withdrew from the arbitrations, the costs, expenses, and damages caused by Respondent’s failure to pay the arbitration fees are nonetheless properly borne by Respondent. Indeed, as <i>Hohenshelt</i> explained, the sanctions under 1281.99, subdivision (a), to compensate the employee for the reasonable expenses incurred by the employee as a result of the employer’s material breach of the arbitration agreement are mandatory. (<i>Hohenshelt, supra</i>, 18 Cal.5th at pp. 339-340.) Moreover, Respondent has failed to explain how it can be relieved of the sanctions arising from its waiver of the right to compel arbitration when it is not seeking to be relieved of the waiver. Nonetheless, the court will examine the three statutes recognized in <i>Hohenshelt</i> as potentially providing a basis for relief from a waiver of the right to compel arbitration by failing to timely pay the fees. Civil Code section 3275 provides an avenue for a party to obtain relief from a waiver of a contractual right “upon making full
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	compensation to the other party, except in case of a grossly negligent, willful, or fraudulent breach of duty.'" (<i>Hohenshelt, supra</i>, 18 Cal.5th at p. 332.) "Under this provision, a nonperforming party is not entitled to relief from forfeiture when its delay was willful, fraudulent, or grossly negligent. But 'when it appears that [the party] has acted in good faith, given some reasonable excuse for the delay, and thereafter tendered performance promptly and with reasonable diligence,' equity can excuse nonperformance so long as the breaching party can and does 'adequately compensate[]' the nonbreaching party for any harm caused by the delay." (<i>Id.</i> at pp. 332-33.) Here, Respondent has not tendered prompt performance, but rather has affirmed its repudiation of its contractual and legal obligations. It also has not compensated Petitioners for the harm caused, but rather has sought to avoid or minimize any compensation it may be required to pay Petitioners. Finally, Respondent has failed to show it was not grossly negligent, willful, or fraudulent in its breach of its obligation to pay the fees. To the contrary, the court finds the breach or failure to pay was willful. As explained above, Respondent intentionally and knowingly did not pay and withdrew from the arbitration. Respondent now claims an inability to pay the arbitration fees, but as more fully explained below, the court is not convinced of that. Rather, it is an after the fact rationalization that was not offered at the time. <i>Hohenshelt</i> also recognized Code of Civil Procedure section 473, subdivision (b), as a basis for obtaining relief from the waiver of the right to compel arbitration. That provision authorizes relief upon a showing of mistake, inadvertence, surprise, or excusable neglect. (<i>Hohenshelt, supra</i>, 18 Cal.5th at pp. 333-34.) Respondent has not identified or argued any basis for obtaining relief under section 473, subdivision (b). Nonetheless, its claim of inability to pay would not meet the standards of section 473, subdivision (b). That leaves just Civil Code section 1511, "which provides that a breach may be excused when performance of the contractual obligation would be impossible, illegal, or impracticable 'because of extreme and unreasonable difficulty, expense, injury, or loss involved.'" (<i>Hohenshelt, supra</i>, 18 Cal.5th at p. 333.) Respondent contends this exception applies because of its "documented insolvency-in-progress." It asserts it simply cannot pay the fees. Respondent, however, has not presented sufficient evidence or argument to convince the court. First, as stated above,
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	the inability to pay the fees was not asserted at the time Respondent withdrew from the arbitrations and refused to pay. Instead, Respondent accused JAMS and Petitioners' counsel of misconduct. Second, Respondent has not presented sufficient evidence to establish its inability to pay when the invoices were due in late 2025. To support its claimed inability, Respondent presented a highly conclusory declaration by its managing director that fails to provide sufficient details to establish the proffered inability. Todd Betlejewski does not provide a balance sheet or any other financial records of Respondent. Instead, he simply states the alleged amount of Respondent's net loss for 2025 and the first half of 2026, Respondent's alleged expenses for those same times periods, and Respondent's alleged revenue from those same time periods. No other information is provided, and no foundation is provided for the stated numbers—e.g., what documents they were taken from. Accordingly, assuming for the sake of argument that Respondent could assert any of the statutory basis for relief from waiver as a basis for avoiding an award of attorney fees, costs, expenses, and sanctions under sections 1281.98, subdivision (c)(1), and 1281.99, Respondent has failed to show any of those bases apply here. Based on the foregoing, the court finds Petitioners are entitled to (1) recover all attorney fees and costs associated with the abandoned arbitration proceeding pursuant to section 1281.98, subdivision (c)(1), and (2) monetary sanctions under section 1281.99, subdivision (a), in the form of the reasonable expenses, including attorney fees and costs, Petitioner incurred as a result of Respondent's material breach. The request for the fees, costs, and sanctions therefore is GRANTED. The court, however, CONTINUES this hearing as stated above for further evidence and briefing regarding the appropriate amount to be awarded. There are 9 Petitioners who have joined in this petition. They each filed and pursued separate individual arbitrations against Respondent. Nonetheless, they seek a single, undifferentiated award of \$239,953.50 in attorney fees and costs associated with the abandoned arbitrations and \$44,327.50 in sanctions for these proceedings. In the declaration of attorney John J. Weber, Petitioners provide a breakdown as to how much each Petitioner incurred in attorney fees and expenses, but no evidentiary
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	basis is provided for that breakdown. Given each Petitioner engaged in a separate arbitration with Respondent, Petitioners must present sufficient evidence showing how much each Petitioner incurred because the court will need to make separate awards to each Petitioner, not an undifferentiated cumulative award. Moreover, the declaration of counsel and the attachments thereto are insufficient to support an award of fees because they fail to provide sufficient information to allow a meaningful review of the reasonableness of the fees and costs. In the declaration, counsel provides a very conclusion summary and the total number of hours expended on all arbitrations combined without any differentiation. Attached to the declaration, counsel provides summary tables relating to the work performed by each professional who has worked on these cases. These tables, however, provide vague, conclusory categories of work over large periods of time without differentiating individual tasks or between cases. Petitioners argue they cannot provide more detail due to significant concerns regarding the disclosure of privileged and sensitive information that could prejudice Petitioners' interest given the litigation is ongoing. The court is not requiring the disclosure of truly privileged information, but much more detailed is required on a Petitioner-by-Petitioner basis. Indeed, by counsel's own admission there are a lot of similarities between the claims of each Petitioner, and therefore this fee claim is ripe for duplicative and repetitive work. Moreover, the court finds Petitioners' offer of an in camera review inappropriate because it deprives Respondent of the opportunity to review and object to the evidence submitted in support of the fee claim. Accordingly, Petitioners are ordered to file and serve a supplement declaration that attached the relevant billing records or provides vastly more detail as to the work and time billed for each Petitioner no later than <u>November 6, 2026</u>. Petitioner also may file a brief in support of the request not to exceed seven pages. Respondent may file an opposition or objection to Petitioners' filing no later than <u>November 23, 2026</u>. Any brief Respondent submits is not to exceed seven pages. <u><i>Evidentiary and Terminating Sanctions:</i></u> As noted above, section 1281.99, subdivision (b) grants the court the discretion to award evidentiary and/or termination sanctions. Indeed, that subdivision provides the court "may" award such sanctions unless it finds the one subject
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	to the sanction acted with substantial justification or that other circumstances make the imposition of sanctions unjust. Although Respondent has not provided sufficient evidence to support the inability to pay for the arbitration fees, or as to why it permitted arbitration to proceed for so long before withdrawing, the monetary sanctions to be awarded will make Petitioners “whole” from the costs and fees already incurred and Petitioners will have the opportunity to prove their cases before a trier of fact. Accordingly, the court declines to impose the permissible non-monetary sanctions, and the request for same therefore is DENIED. <i><u>Maintaining Joinder and Denying Severance:</u></i> Petitioners also request an order maintaining joinder and denying severance so that they may all pursue their claims against Respondent in a single court case. As noted above, that request is DENIED WITHOUT PREJUDICE. Petitioners have not cited any authority that authorizes such a rule based on a material breach under section 1281.98. Petitioners argue the prohibition against joinder is included in the arbitration provisions, and because Respondent has waived the right to arbitrate, it also has waived the right to require separate actions. The court finds this to be unsupported bootstrapping. Whether all Petitioners should be permitted to join together in a single case is for the judicial officer assigned to that case to decide. To the extent Respondent seeks to assert any waiver of the right to join claims, the enforceability of any such waiver also will be for the assigned judicial officer to decide. <i><u>Respondent’s Evidentiary Objections:</u></i> Respondent asserts various evidentiary objections to the declaration submitted by Petitioners’ counsel. Those objections are overruled as to objection nos. 1, 4–7, 20, 21, 23, 24; and 2 and 3 (first sentence; sustained as to rest), and sustained as to objection nos. 2 (overruled as to first sentence; remainder lacks foundation, speculation, argumentative); 3 (overruled as to first sentence; remainder argumentative and opinion); 8–11 (argumentative, speculative, opinion); 12 (irrelevant, legal conclusion); 13 (best evidence); 14 (irrelevant, speculative, argumentative); 15–17 (lacks foundation, speculative, argumentative); and 18–19, and 22 (lacks foundation, speculative, argumentative, calls for legal conclusion). Petitioner’s counsel is ordered to give notice of this ruling.
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7.	<i>The Water-Gardens Owners Association vs. Jaurigue</i> 2017-00936532	Before the court is the motion to enforce settlement and enter judgment pursuant to Code of Civil Procedure section 664.6 filed by plaintiff The Water-Gardens Owners Association (Plaintiff) against defendants John F. Jaurigue and Priscilla Jaurigue (collectively, Defendants). The motion is GRANTED IN PART and DENIED IN PART as set forth below. "If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement." (Code Civ. Proc., § 664.6.) "A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement. [Citations.] A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. [Citations.] The court ruling on a motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. [Citations.] If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. [Citation.] The statute expressly provides for the court to 'enter judgment pursuant to the terms of the settlement.' [Citation.]" (<i>Hines v. Lukes</i> (2008) 167 Cal.App.4th 1174, 1182.) Plaintiff moves for an order enforcing the settlement agreement (Settlement) made orally before the court on May 9, 2019, and entering judgment against Defendants in the sum of \$60,453.31. The transcript of the May 9, 2019 hearing and the minute order regarding the hearing both reflect the court retained jurisdiction pursuant to Code of Civil Procedure section 664.6 to enforce the Settlement. (See Ex. A to Emsiek Decl.) The transcript shows Plaintiff's board president, Thomas Babcock, appeared at the hearing with Plaintiff's counsel, David Mangikyan from The Judge Law Firm, ALC. Also present at the hearing was defendant Priscilla Jaurigue and Defendants' counsel, Michael A. Cisneros. Defendant John F. Jaurigue was not present at the hearing. The temporary judge presiding over the settlement conference, Emmett
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		Raitt, read the terms and condition of the Settlement into the record. (See Reporter’s Transcript pp. 3-4.) The court finds Plaintiff established it is entitled to entry of judgment in the sum of \$60,453.31 as to Priscilla Jaurigue only. Although a written settlement agreement and stipulation for entry of judgment was not executed as contemplated by the parties, this does not affect the enforceability of the oral settlement where, as here, “the respective parties orally agreed upon all of the [material] terms and conditions of a proposed written agreement with the mutual intention that the oral agreement should thereupon become binding[.] [T]he mere fact that a formal written agreement to the same effect [was] not . . . signed [by all of the parties] does not alter the binding validity of the oral agreement [on the parties who gave their assent before the trial court].” (<i>Elyaoudayan v. Hoffman</i> (2003) 104 Cal.App.4th 1421, 1430.) The transcript of the proceeding reflects the parties reached a settlement of the case, all the terms of the Settlement were recited on the record, and Plaintiff and Ms. Jaurigue understood and agreed to the terms of the Settlement as stated in court. Under these circumstances, the failure to execute the written documents as contemplated by the agreement does not render the Settlement unenforceable. The terms of the Settlement show Plaintiff’s forbearance from executing on the stipulated judgment was conditioned on Defendants filing a legal malpractice action against their prior bankruptcy counsel within 30 days, prosecuting in good faith and with due diligence, and remitting the net proceeds to Plaintiff up to \$60,453.31. Defendants failed to perform those conditions as the legal malpractice action, <i>Jaurigue v. Kyllander</i>, Orange County Superior Court Case No. 30-2019-01100466-CU PN-CJC, was dismissed on or about March 28, 2022, for failure to prosecute. (Emsiek Decl., ¶ 6.) Plaintiff’s counsel states Defendants paid the \$4,000 contemplated by the Settlement, but Defendants never remitted any net proceeds of the legal malpractice action to Plaintiff, and the \$60,453.31 balance owed under the Settlement remains wholly unpaid. (Emsiek Decl., ¶¶ 4, 7.) Plaintiff therefore seeks entry of judgment in the stipulated sum of \$64,453.31, less the \$4,000 credit, for a net judgment of \$60,453.31. (Emsiek Decl., ¶ 9.)
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		Based on the foregoing, Plaintiff has shown it is entitled to a stipulated judgment in the requested sum of \$60,453.31 against Priscilla Jaurigue. Plaintiff, however, has not shown the Settlement is enforceable against defendant John F. Jaurigue, who was not present in court when the Settlement was reached and did not state his accepted thereof or agreement thereto. When discussing the legal standards for motions to enforce settlements under section 664.6, Plaintiff cites <i>Wackeen v. Malis</i> (2002) 97 Cal.App.4th 429, which actually refutes Plaintiff's contention that Mr. Jaurigue is bound by the Settlement. The Court of Appeal in <i>Wackeen</i>, when discussing the requirements for a valid section 664.6 request for retention of jurisdiction, stated "courts have held that stipulated settlements must be signed by the parties themselves, or agreed to by the parties themselves in open court, and it is not sufficient for their attorneys or spouses to sign the writing [citations] or voice the agreement in open court [citation]. Like the stipulated settlement itself, a request that jurisdiction be retained until the settlement has been fully performed must be made either in a writing signed by the parties themselves, or orally before the court by the parties themselves, not by their attorneys of record, their spouses, or other such agents." (<i>Wackeen v. Malis, supra</i>, 97 Cal.App.4th at p. 440.) Indeed, <i>Williams v. Saunders</i> (1997) 55 Cal.App.4th 1158, 1162-1163, specifically held one spouse's agreement to a settlement was not sufficient to satisfy the requirements of section 664.6 as to the other spouse; rather, the other spouse must orally agree in open court or sign the necessary documentation. The court notes the recent case of <i>Greisman v. FCA US, LLC</i> (2024) 103 Cal.App.5th 1310, held "as applied to oral settlements stipulated before the court, current section 664.6 does not require that the parties themselves orally stipulate, and instead allows counsel for the parties to orally stipulate on their behalf." (<i>Id.</i>, at p. 1326.) <i>Greisman</i>, however, involved a version of section 664.6 that became effective January 1, 2021, after the settlement agreement in the instant matter was reached. (See <i>Id.</i> at p. 1324.) As the foregoing authorities hold, the prior versions of section 664.6, including the one in effect with the settlement in this case was reached, required the assent of the party. Generally, statutes do not have retroactive effect. (<i>Evangelatos v. Superior Court</i> (1988) 44 Cal.3d 1188, 1208; <i>Nabors Corporate Services, Inc. v.</i>
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		<i>City of Long Beach</i> (2025) 108 Cal.App.5th 540, 556.) Thus, it would appear <i>Greisman</i> does not apply to the instant Settlement and instead the holding in <i>Wackeen</i> and <i>Williams</i> applies. Based on the foregoing, the motion is GRANTED as to Priscilla Jaurigue and DENIED as to John F. Jaurigue. Counsel for Plaintiff is to submit a proposed order/judgment in accordance with this ruling. Counsel for Plaintiff is ordered to give notice of this ruling.
8.	<i>Claim of Mavromatis</i> 2026-01563873	Before the court is the motion of petitioner People of the State of California (Petitioner) for default and default judgment of forfeiture pertaining to \$35,532.00 in United States Currency seized on December 29, 2025, by the Irvine Police Department from the residence of real party-in-interest Nicholas Mavromatis (Mavromatis). As more fully set forth below, the motion is GRANTED. The petition in this case was brought pursuant to Health and Safety Code section 11470, et. seq. and was timely filed within one year of seizure. (Health & Safety Code, § 11488.4(a).) Health and Safety Code section 11488.5, subdivision (a) grants any claimant to the property subject to forfeiture 30 days from the last publication of notice of the forfeiture proceedings or 30 days after receipt of actual notice to file a verified claim for the property. Section 11488.5, subdivision (b)(1), provides, "If at the end of the time set forth in subdivision (a) there is no claim on file, the court, upon motion, shall declare the property seized or subject to forfeiture pursuant to subdivisions (a) to (g), inclusive, of Section 11470 forfeited to the state. In moving for a default judgment pursuant to this subdivision, the state or local governmental entity shall be required to establish a prima facie case in support of its petition for forfeiture. There is no requirement for forfeiture thereof that a criminal conviction be obtained in an underlying or related criminal offense." "Health and Safety Code section 11488.4 provides for three types of notice of forfeiture proceedings. [Citation.] First, a person from whom property is seized and who is named in a receipt for the seized property is entitled to service of process of the petition of forfeiture. (Health & Saf. Code, § 11488.4, subd. (c).) Second, notice of the seizure or of an intended forfeiture proceeding along with instructions for filing a claim is 'to be served by personal delivery or by registered mail upon any person who has an interest in the

		seized property or property subject to forfeiture other than persons designated in a receipt issued for the property seized.’ (<i>Id.</i>, § 11488.4, subd. (c).) Finally, notice of a forfeiture action must be published once a week for three consecutive weeks in a newspaper of general circulation in the county of seizure. (<i>Id.</i>, § 11488.4, subd. (e).)” (<i>People v. Mendocino County Assessor’s Parcel No. 056-500-09</i> (1997) 58 Cal.App.4th 120, 125.) Here, Petitioner has provided evidence showing notice of these proceedings was duly given. Mavromatis is the only person identified in the receipt for the seized property and Petitioner provided evidence showing he was personally served with the petition of forfeiture and with notice of the seizure and intended forfeiture proceeding along with instructions for filing a claim. Mavromatis’ wife and brother both signed a “Disclaimer of Ownership and Waiver of Notice” pertaining to the seized property. Petitioner also provided proof showing notice of the forfeiture action was given by publication as required by Health & Safety Code section 11488.4, subdivision (e). Mavromatis was also served with a copy of this motion by mail. No claim has been filed by any party asserting any interest in the seized property. Based on the uncontroverted declaration of Irvine Police Department Detective Ryan Smith #624, the court finds Petitioner has established a prima facie case in support of its petition for forfeiture, and therefore Petitioner is entitled to a default judgment of forfeiture. Based on the foregoing, the motion is GRANTED. The court will sign the proposed judgment submitted by Petitioner. Petitioner’s counsel is ordered to give notice of this ruling.
9.	<i>Saddozai v. American Contractors Indemnity Company</i> 2015-00816859	CONTINUED to September 17, 2026, as stated in the September 4, 2026 Minute Order.
10.	<i>Kaiser Foundation Health Plan vs. Sharp</i>	Before the court is the continued hearing on the following three motions to seal: (1) motion to seal portions of the opposition brief and supporting documents respondents Sharp Memorial Hospital, Sharp Coronado Hospital & Healthcare Center, Sharp Chula Vista Medical Center, and Grossmont Hospital Corporation dba Sharp Grossmont

	Memorial Hospital 2026-01566981	Hospital (collectively, Sharp) filed in response to the petition to confirm arbitration award filed by Kaiser Foundation Health Plan (Kaiser), (2) motion to seal portions of Kaiser’s petition to confirm arbitration award, and (3) motion to seal Kaiser’s opposition to Sharp’s motion to vacate the arbitration award. At prior hearings on the motions, the court pointed out various deficiencies with the motions, including the lack of proofs of service for some filings, Sharp’s failure to file an unredacted version of its opposition, and the failure to make the requested redactions/sealings sufficiently narrowly tailored. At the last hearing, the court ordered the parties to meet and confer regarding what specific portions of the various documents at issue they sought to seal and to file a joint statement identifying specific what portions they seek to seal and a correlation table identifying the seals and unsealed version of the documents. The parties have corrected the various deficiencies regarding the lack of proof of service and the failure to file an unredacted version of Sharp’s opposition. The parties also have filed the joint statement the court ordered. Accordingly, the only remaining question is whether the requested sealings satisfying the standards for sealing. “Unless confidentiality is required by law, court records are presumed to be open.” (Cal. Rules Ct., rule 2.550(c).) “A record must not be filed under seal without a court order. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties.” (<i>Id.</i> at rule 2.551(a).) “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” (<i>Id.</i> at rule 2.551(b)(1).) “The court may order that a record be filed under seal only if it expressly finds facts that establish: [¶] (1) There exists an overriding interest that overcomes the right of public access to the record; [¶] (2) The overriding interest supports sealing the record; [¶] (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; [¶] (4) The proposed sealing is narrowly tailored; and [¶] (5) No less restrictive means exist to achieve the overriding interest.” (Cal. Rules Ct., rule 2.550(d).) “Only the specific words or documents that constitute sensitive materials should be sealed; generally, it is not
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		permissible to seal the entire document.” (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2025) ¶9:418.5.) Matters that may qualify for sealing—i.e., there may be an overriding interest that overcomes the right to public access—include trade secrets (<i>In Re Providian Credit Card Cases</i> (2002) 96 Cal.App.4th 292, 300; <i>McGuan v. Endovascular Technologies, Inc.</i> (2010) 182 Cal.App.4th 974, 988) and confidential settlement agreements (<i>Universal Studios, Inc. v. Superior Court</i> (2003) 110 Cal.App.4th 1273, 1283.) However, a settlement agreement that contains a confidentiality clause does not qualify for sealing after all references to financial and other confidential data have been redacted. (<i>Id.</i> at p. 1284; <i>Huffy Corp. v. Superior Court</i> (2003) 112 Cal.App.4th 97, 107.) Indeed, the mere existence of a confidential settlement agreement resolving a public lawsuit does not warrant sealing the entire agreement, nor is the sealing of standard, nonconfidential provisions warranted. (<i>Ibid.</i>) As the Rules of Court require, the sealing must be narrowly tailored. The court has reviewed the most recent proposals by the parties regarding the sealing of the documents identified in the joint statement. The court acknowledges the parties have worked again to more narrowly tailor the specific provisions they seek to seal. Based on the foregoing, the motions are GRANTED IN PART and DENIED IN PART. Specifically, the motions are GRANTED as to (1) the identified portions of Exhibit 1 to the joint statement (i.e., Kaiser’s petition to confirm the arbitration award), (2) the identified portions of Exhibit 2 to the joint statement (i.e., Sharp’s opposition and request to vacate the arbitration award), (3) the identified portions of Exhibit 3 to the joint statement (i.e., the Toooh Declaration in support of Sharp’s opposition and request to vacate) with the <u>exception of Exhibit A</u>, (4) the identified portions of Exhibit 4 to the joint statement (i.e., Kaiser’s opposition to Sharp’s request to vacate), and (5) the identified portions of Exhibit 5 to the joint statement (i.e., the Brooks’ Declaration in support of Kaisers opposition to Sharp’s request to vacate) with the <u>exception of Exhibit 1</u>. The motions are denied as to Exhibit A to the Toooh Declaration and Exhibit 1 to the Brooks Declaration. Those exhibits are the same document—i.e., the Confidential Settlement and Release Agreement. The parties seek to seal this agreement in its entirety, but they have not made
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		a sufficient showing to justify the whole sale sealing or redaction of that agreement. Although it is a confidential agreement, it resolves a lawsuit filed in court. As such, its existence is not worthy of sealing. Moreover, the agreement includes a number of standard settlement terms and other terms for which there is not a sufficient showing to support sealing. As stated, specific financial terms and trade secret information may be sealed, but this request goes well beyond that. The court has given the parties multiple opportunities to redact or otherwise justify the wholesale sealing of this document and they have failed to do so. Accordingly, at the hearing, the parties must be prepared to address how to proceed with the petition to confirm the arbitration award and the request to vacate based on this ruling. All parties are ordered to submit proposed orders granting their motions consistent with the requirements of Rules of Court rules 2.550 and 2.551.) Kaiser’s counsel will be ordered to give notice of this ruling.
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